

2 Marks

1. Who was the Chairman of the Constituent Assembly?

Dr Sachchidanand Sinha was the first elected chairman (temporary) of Constituent Assembly. Later Dr. Rajendra Prasad honoured the chair.

2. What is a Constitution?

The basic law or laws of a nation or a state which sets out how that state will be organized by deciding the powers and authorities of government between different political units, and by stating the basic law-making and structural principles of society.

3. What do you understand by fundamental rights?

The rights that are basic to the advancement of the human race are called Fundamental Rights. All other rights are derived from these rights as direct implications or application of their principles. It is an accepted belief among the philosophers that these rights are nothing but “natural human rights”. The Fundamental Rights are defined as basic human freedoms which are necessary for a proper and harmonious development of personality and protection of human dignity.

4. When was Abolition of the Untouchability Act enacted?

Parliament originally enacted the Untouchability (offences) Act 1955. This Act prescribes punishment for the practice of untouchability. This Act has been amended by the Untouchability (Offences) Amendment Act, 1976, in order to make laws more

stringent to remove untouchability from the society. It has also been renamed as The Protection of Civil Rights Act, 1955.

5. What is the difference between a fundamental right and a legal right?

A fundamental right under Constitution of India is so fundamental that it can't be taken away even by a law passed by the parliament of India. A legal right, like Right to Property, which is currently covered by Article 300A, can be taken away "by the authority of law".

6. Why the judgement in Kesavananda Bharti case is treated as one of the most celebrated judgements?

The basic structure doctrine, as future events showed, saved Indian democracy and Kesavananda Bharati will always occupy a hallowed place in our constitutional history.

7. What is Bonded Labor?

The 'bonded labour system' refers to "the relationship between a creditor and a debtor who obtains loan owing to economic compulsions confronting his day-to-day life, and agrees to abide by the terms dictated by the creditor".

8. What is impeachment? Has any President been impeached in India?

As per Article 61, President of India can be impeached on ground of violation of the Constitution. The process of impeachment can begin in any of Lok Sabha or Rajya Sabha. The charges for

impeachment should be signed by 1/4 members of the house in which the process begins and a notice of 14 days should be given to the President. No president of India has been impeached so far.

9. What is 'cooperative federalism'?

Cooperative federalism is a concept of federalism in which national, state, and local governments interact cooperatively and collectively to solve common problems. It is a more nebulous form of federalism emerged during the Progressive Era and blossomed in the late 1930s with New Deal legislation in USA. Under cooperative federalism, or "marble cake" federalism, national and state governments work together to provide services efficiently. Cooperative federalism provides a practical approach to intergovernmental relations as more complex problems arose that could not be addressed at one level of government.

10. Write two differences between Fundamental rights and Directive principle of the state policy.

1. **Enforceability:** Fundamental Rights are legally enforceable by courts, whereas Directive Principles are non-justiciable and cannot be enforced legally.
2. **Purpose:** Fundamental Rights protect individual freedoms, while Directive Principles guide the State in achieving socio-economic justice and welfare.

11. Write two differences between rights and Fundamental rights

1. **Scope:** Rights are general legal entitlements granted to individuals, while Fundamental Rights are constitutional guarantees ensuring basic freedoms and equality.

2. Enforceability: Fundamental Rights are enforceable by courts under the Constitution, whereas ordinary rights depend on statutory provisions.

12. What is the importance of the Preamble of the Constitution of India?

The Preamble of the Constitution of India serves as the introductory statement, outlining the core values and objectives of the nation. It emphasizes justice, liberty, equality, and fraternity, guiding the spirit of the Constitution. It reflects the aspirations of the people and acts as a philosophical foundation for interpreting constitutional provisions.

13. Define the Fundamental Rights

Fundamental Rights are basic human rights guaranteed by the Constitution of India, ensuring individual freedom, equality, and justice. They include rights such as freedom of speech, right to equality, and protection against discrimination, and are enforceable by courts to protect citizens' dignity and liberty.

14. What is the Panchayati Raj system in India?

Answer: The Panchayati Raj system is a decentralized form of governance in India, designed to enable local self-governance at the village, intermediate, and district levels. It empowers citizens to participate in decision-making and administration of local development.

15. What is the significance of the 73rd Amendment to the Indian Constitution? Answer: The 73rd Amendment, enacted in

1992, strengthened the Panchayati Raj system by making it a constitutional framework. It provided for the establishment of Panchayati Raj institutions, outlined their powers, and mandated regular elections and financial autonomy for effective local governance.

16. What are the main functions of Panchayati Raj institutions?

Answer: Panchayati Raj institutions are responsible for local administration, including planning and implementation of development programs, maintaining infrastructure, managing public health and sanitation, and fostering community participation in decision-making for sustainable development at the village level.

17. What is the structure of municipalities in India?

Municipalities in India are urban local bodies governed by the 74th Amendment of the Constitution. They include three types: Nagar Panchayats, Municipal Councils, and Municipal Corporations, each serving different-sized urban areas with varying administrative powers.

A. What are the main functions of municipalities in India?

Municipalities are responsible for local governance and services such as water supply, waste management, public health, sanitation, and maintaining infrastructure. They also oversee urban planning, regulation of land use, and implementation of government policies for urban development.

B. Explain the composition of a Municipal Corporation. A Municipal Corporation consists of elected representatives called corporators or councillors, headed by a Mayor. The number of members depends on the population of the city. The corporation manages city administration, with committees handling specific areas like health, education, and finance.

18. What does Article 21 of the Constitution of India guarantee?

Article 21 guarantees the right to life and personal liberty, stating that no person shall be deprived of these rights except according to the procedure established by law. It ensures the protection of individual dignity and freedom.

5 Marks

1. Write a short note on the writs of Habeas Corpus and Mandamus.

Ans :

a. What does mandamus mean?

Mandamus means “we command”. This writ is a command issued by court to a public official, public body, corporation, inferior court, tribunal or government asking them to perform their duties which they have refused to perform. Due to this, Mandamus is called a “wakening call” and it awakes the sleeping authorities to perform their duty. Mandamus thus demands an activity and sets the authority in action. Mandamus cannot be issued against the following: a private individual or private body. if the duty in question is discretionary and not mandatory. against president or governors of state against a working chief justice to enforce some kind of private contract. A petition for writ of mandamus can be filed by any person who seeks a legal duty to be performed by a person or a body. Such a filing person must have real or special interest in the subject matter and must have legal right to do so.

Habeas Corpus is a Latin term meaning “you shall have the body.” It is a writ issued by a court to ensure that a person's detention or imprisonment is lawful. This fundamental right protects individuals from arbitrary arrest or unlawful confinement, safeguarding personal liberty. Under Article 32 and Article 226 of the Indian Constitution, individuals can approach the Supreme Court or High Courts, respectively, to issue this writ. If a person is detained, the authority must produce the detainee before the court and justify the detention. If the court finds the detention illegal, it orders the release of the individual. Habeas Corpus is a cornerstone of democratic principles, emphasizing accountability and protecting citizens against misuse of power.

2. Describe the procedure for electing the President of India.

Ans:

The procedure of Presidential election:

1. The value of an MLA's vote is calculated based on the population of the and the number of elected members in the Legislative Assembly of that state. The formula for determining the value of each MLA's vote is:

The formula for determining the number of votes held by an MLA is:

$$\text{Value of an MLA vote} = \frac{\text{Total population of the state or union territory}}{\text{Total number of elected members of the State Legislative Assembly} \times 1000}$$

To take a hypothetical example, we may say that if there is a population of 5,000,000 in a State and there are 50 elected M.L.A.s, then the value of the votes of each of them will be:
 $5,000,000 / 50 = 100,000 / 1000 = 100$.

2. Each elected member of the Parliament shall have such number of votes as may be obtained by dividing the total number of votes assigned to all the elected M.L.A.'s of the country by the total strength of the elected M.P.'s is to be counted as one vote more, otherwise it shall be discarded. Its formula may be put as under:

The value of an MP's vote is calculated by dividing the total value of all MLAs' votes by the number of MPs. The formula for determining the number of votes held by an MP is:

$$\text{Value of an MP vote} = \frac{\text{The sum of vote value of elected members of all the State Legislative Assemblies}}{\text{The sum of elected members of both the houses of Parliament}}$$

To take a hypothetical example again, we may say that in case the total value of votes of all the elected M.L.A.'s of the country is 2,00,000 and the total strength of the Elected M.P.'s are 500, and then the value of the votes of each elected M.P. will be 400.

3. Finally, it is provided that the election of the President shall be by secret ballot and in accordance with the system of proportional representation with single transferable vote. It means that the voter shall be given a ballot paper having the names and party symbols of the candidates on the left side with blank columns on the right that he has to fill up by showing his preferences. The voter shall place the figures of 1,2,3 and so on in the blank columns to show his order of preferences after the polling is over, counting shall take place. First of all, invalid paper shall be rejected and electoral quota shall be taken out by means of this formula:

$$\text{Electoral Quota} = \text{Total number of valid votes polled} + 1$$

$$1+1=2$$

Then counting will begin. In case a candidate secures vote's upto the figure of electoral quota in the first round, he shall be declared elected. Otherwise, subsequent rounds shall be made to declare the results. A candidate having least number of votes shall be eliminated and his votes shall be transferred to other candidates according to second preferences. Thus, the votes of other candidates will be enhanced. The process will continue until the result is available.

3. Mention Five Fundamental Duties enshrined in the Indian Constitution

Ans:

☐ **Respect the Constitution, Flag, and Anthem**

- Follow the rules and honor national symbols.

☐ **Follow ideals of freedom fighters**

- Be inspired by their sacrifices.

☐ **Protect the unity of the country**

- Keep India united and strong.

☐ **Help the country in emergencies**

- Defend and serve when needed.

☐ **Care for nature and animals**

- Protect the environment and show kindness to creatures.

4. Critically analyse the Right to Freedom of Religion as guaranteed under Articles .

Ans:

1. Inclusive Secularism:

- The Indian Constitution adopts a secular approach, ensuring that the state does not favor or discriminate against any religion.
- **Strength:** Protects religious diversity and harmony in a multicultural society.
- **Limitation:** Challenges arise when religious practices conflict with fundamental rights (e.g., gender equality in temple entry cases).

2. Scope of Freedom (Article 25):

- Grants freedom of conscience and religious practice, subject to public order, health, and morality.
- **Strength:** Balances individual liberty with societal interests.
- **Limitation:** The vague terms like "public order" can sometimes lead to misuse or arbitrary restrictions.

3. State and Religious Institutions (Articles 26-28):

- **Article 26:** Allows religious groups to manage their own affairs, promoting autonomy.
- **Strength:** Empowers communities to preserve their culture.
- **Limitation:** Tensions arise when state interventions (e.g., regulating temple finances) are perceived as overreach.
- **Article 28:** Prohibits religious instruction in state-funded institutions, upholding secular education.
- **Limitation:** Religious minorities often feel neglected in preserving their educational rights.

4. Conflicts with Modern Values:

- Certain traditional religious practices (e.g., child marriage, Sati) clash with modern constitutional principles like equality and dignity, leading to judicial intervention.
- The judiciary has to strike a delicate balance between preserving cultural heritage and ensuring constitutional morality.

10 Marks

1. Discuss the basic features of the Indian Constitution and explain how they reflect the vision of its framers.

Ans:

Basic Features of the Indian Constitution and the Vision of Its Framers

The Indian Constitution, adopted on **26th November 1949**, is one of the most comprehensive constitutions in the world. Its features reflect the vision of its framers to build a democratic, inclusive, and progressive nation.

1. Sovereign, Socialist, Secular, Democratic, Republic

- **Features:**

- India is independent (**sovereign**) in internal and external affairs.
- It strives for social and economic equality (**socialist**).
- It ensures freedom for all religions (**secular**).
- Citizens elect their representatives (**democratic**) in a system with no hereditary rulers (**republic**).

- **Vision:**

- To create a free, equitable society that values liberty and justice for all, inspired by global democratic ideals.

2. Fundamental Rights and Duties

- **Features:**

- Fundamental Rights (Articles 12-35) safeguard individual liberties like equality, freedom of speech, and protection against exploitation.
- Fundamental Duties (Article 51A) emphasize citizens' responsibilities.

- **Vision:**

- To balance individual freedom with collective responsibility, ensuring social justice and unity.

3. Parliamentary System of Government

- **Features:**

- A dual executive system with the President as the nominal head and the Prime Minister as the real executive.
- The legislature is accountable to the people.

- **Vision:**

- To ensure accountability, transparency, and people's participation in governance, inspired by the British model.

4. Federal Structure with a Strong Centre

- **Features:**

- Powers are divided between the Centre and states (Schedule VII), but the Centre is stronger (e.g., residuary powers, emergency provisions).

- **Vision:**

- To accommodate India's diversity while ensuring unity and effective governance, addressing challenges like regionalism and separatism.

5. Independent Judiciary

- **Features:**

- The judiciary ensures justice through impartiality and independence (e.g., judicial review).
- The Supreme Court is the guardian of the Constitution.

- **Vision:**
 - To safeguard democracy and prevent misuse of power, ensuring the rule of law.
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6. Universal Adult Suffrage

- **Features:**
 - Every citizen aged 18 or above has the right to vote, irrespective of caste, gender, or religion.
 - **Vision:**
 - To empower every individual and promote inclusiveness in political processes.
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7. Directive Principles of State Policy (DPSP)

- **Features:**
 - Non-enforceable guidelines to promote welfare, reduce inequality, and ensure socio-economic justice.
 - **Vision:**
 - To create a welfare state based on Gandhian and Nehruvian principles.
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8. Flexibility and Rigidity

- **Features:**
 - The Constitution is both flexible (e.g., ordinary laws) and rigid (e.g., special majority for amendments).
 - **Vision:**
 - To adapt to changing times while protecting fundamental values.
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How These Features Reflect the Framers' Vision

1. **Inclusivity:** Provisions like fundamental rights and universal suffrage ensure equality and dignity for all citizens.
2. **Unity in Diversity:** The federal structure, secularism, and linguistic accommodations foster national integration.
3. **Justice and Welfare:** Fundamental Rights and DPSPs highlight the commitment to eradicate inequalities and promote social justice.
4. **Democratic Ideals:** The parliamentary system and independent judiciary emphasize accountability, fairness, and people's sovereignty.
5. **Adaptability:** The Constitution's ability to evolve (e.g., through amendments) shows the framers' foresight to address future challenges.

2. Explain Article 19 of the Indian Constitution and highlight its reasonable restrictions.

Ans:

Article 19 of the Indian Constitution: Fundamental Right to Freedom

Article 19 of the Indian Constitution guarantees **six fundamental freedoms** to Indian citizens. These freedoms are essential for the development of an individual and for the functioning of a democratic society.

Six Freedoms Under Article 19

1. **Freedom of Speech and Expression (19(1)(a)):**
 - Right to express opinions freely through words, writing, pictures, or any other medium.
 - Includes freedom of the press and artistic expression.
2. **Freedom to Assemble Peaceably and Without Arms (19(1)(b)):**
 - Right to hold peaceful public meetings or demonstrations.

3. **Freedom to Form Associations or Unions (19(1)(c)):**
 - Right to form groups, unions, or societies for lawful purposes.
4. **Freedom to Move Freely Throughout India (19(1)(d)):**
 - Right to travel and reside in any part of India.
5. **Freedom to Reside and Settle in Any Part of India (19(1)(e)):**
 - Right to reside or establish residence anywhere in the country.
6. **Freedom to Practice Any Profession or Occupation (19(1)(g)):**
 - Right to choose any profession, trade, or business, subject to legality and ethics.

Reasonable Restrictions on Article 19

While Article 19 guarantees freedoms, these are not absolute. The Constitution allows **reasonable restrictions** to maintain public order, morality, and sovereignty. These restrictions are outlined in **Article 19(2) to 19(6)**.

1. **For Freedom of Speech and Expression (19(1)(a)):**

Restrictions can be imposed for:

 - Sovereignty and integrity of India
 - Security of the state
 - Friendly relations with foreign states
 - Public order
 - Decency or morality
 - Contempt of court
 - Defamation
 - Incitement to an offense
2. **For Freedom to Assemble (19(1)(b)):**
 - Restricted to prevent threats to public order or sovereignty.
 - Assemblies must be peaceful and without arms.
3. **For Freedom to Form Associations (19(1)(c)):**
 - Restrictions for national sovereignty, public order, or morality.
4. **For Freedom to Move or Reside (19(1)(d) and 19(1)(e)):**
 - Reasonable restrictions for tribal areas, public health, or state security concerns.
5. **For Freedom to Practice Profession (19(1)(g)):**
 - Restrictions in the interest of public health, morality, or professional regulations (e.g., licensing laws).

3. Discuss the nature of Indian federalism'

Ans:

The Nature of Indian Federalism

Indian federalism is unique and distinct from classical federal systems like that of the United States. The Constitution of India establishes a **quasi-federal structure** that combines the features of both federal and unitary systems to suit the country's vast diversity and need for a strong central authority.

1. Meaning of Federalism

Federalism implies a system of government in which power is divided between a central authority and various constituent units (states). Both levels of government derive their authority from a written constitution and operate independently within their assigned spheres.

2. Features of Indian Federalism

1. **Dual Polity:**

- India has two levels of government: the Union Government and State Governments, each functioning within its defined sphere of powers.

2. **Division of Powers:**

- The Seventh Schedule divides powers between the Union and states into three lists:
 - **Union List (97 subjects):** Subjects like defense, foreign affairs, banking.
 - **State List (66 subjects):** Subjects like police, public health, agriculture.
 - **Concurrent List (47 subjects):** Subjects like education, forest, marriage.

3. **Supremacy of the Constitution:**

- The Constitution is the supreme law of the land, and both the Union and state governments must function within its framework.

4. **Independent Judiciary:**

- The judiciary, particularly the Supreme Court, acts as the guardian of the Constitution and resolves disputes between the Union and states.

5. **Single Citizenship:**

- Unlike classical federal systems, India provides for single citizenship, emphasizing national unity over state identity.

6. **Integrated Financial System:**

- States depend on the Union for financial assistance, grants, and loans. The **Finance Commission** ensures equitable distribution of resources.

3. Unitary Features in Indian Federalism

1. **Strong Centre:**

- The Union Government holds residuary powers (subjects not mentioned in any list).
- In case of conflicts, the Union's laws override state laws on concurrent subjects.

2. **Emergency Provisions:**

- During national emergencies (Article 352, 356, 360), the central government assumes control over state subjects, making the system unitary.

3. **Appointment of Governors:**

- Governors are appointed by the President and act as representatives of the Union in the states.

4. **Single Constitution:**

- States do not have separate constitutions, unlike the U.S.

5. **All-India Services:**

- Services like IAS and IPS are controlled by the Union but serve both levels of government.

4. Nature of Indian Federalism: Quasi-Federal

Indian federalism is often termed "quasi-federal" or "cooperative federalism" because:

- It is **federal in structure** (division of powers, dual polity).
- It is **unitary in spirit** (strong central control, emergency provisions).

5. Rationale Behind Quasi-Federalism

1. **Diversity and Unity:**

- India's linguistic, cultural, and regional diversity necessitated a system that balances regional autonomy with national unity.

2. **Strong Central Government:**

- To ensure stability and effective governance in a vast and diverse country prone to external and internal threats.

3. Flexibility:

- Allows the system to adapt to changing socio-economic and political conditions.
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6. Challenges to Indian Federalism

1. Centralization of Powers:

- States often feel sidelined due to the Union's dominance in financial and legislative matters.

2. Regional Disparities:

- Uneven economic development across states creates friction.

3. Inter-State Disputes:

- Issues like river water sharing and territorial boundaries remain contentious.
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Conclusion

Indian federalism reflects the vision of its framers to create a system that accommodates diversity while ensuring unity and stability. By combining federal and unitary features, the Constitution allows India to function as a robust, dynamic democracy, capable of addressing both regional aspirations and national interests. This unique model is an effective solution to India's socio-political complexities.

4. Explain the procedure for amending the Indian Constitution. How does it balance rigidity and flexibility?

Ans:

Procedure for Amending the Indian Constitution

The procedure for amending the Indian Constitution is outlined in **Article 368**. It reflects a balance between **rigidity** and **flexibility**, ensuring that the Constitution evolves with time while safeguarding its fundamental principles.

Types of Amendments

The Constitution provides three ways to amend its provisions:

1. By Simple Majority of Parliament

- Amendments passed by a simple majority (more than 50% of members present and voting).
- Used for matters like:
 - Admission or reorganization of states (Articles 2 and 3).
 - Citizenship laws.
 - Changes in the Parliament's quorum rules.

2. By Special Majority of Parliament

- Requires a two-thirds majority of members present and voting, plus an absolute majority of the total membership of each House.
- Used for most constitutional amendments, such as:
 - Fundamental Rights.
 - Directive Principles of State Policy.

- Powers of the President and Parliament.

3. By Special Majority and Ratification by States

- Requires approval by a special majority in Parliament and ratification by at least **half of the state legislatures**.
 - Used for amendments affecting:
 - Federal structure (e.g., distribution of powers between Centre and states).
 - Representation of states in Parliament.
 - Election of the President.
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Steps in the Amendment Process

1. Initiation of the Bill:

- Can be introduced in either House of Parliament, but not in a state legislature.
- Private members or ministers can introduce the bill.

2. Parliamentary Approval:

- For simple majority: Passed by a simple majority.
- For special majority: Requires two-thirds of members present and voting in each House.

3. Ratification by States (if required):

- In cases where the federal structure is affected, at least half of the state legislatures must approve the amendment by a simple majority.

4. President's Assent:

- After approval, the bill is sent to the President, who must give assent.
- There is no provision for returning the bill to Parliament.

5. Amendment Comes into Effect:

- Once the President's assent is obtained, the amendment becomes part of the Constitution.
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Balancing Rigidity and Flexibility

The amendment procedure balances rigidity and flexibility to maintain stability while allowing adaptation to changing needs:

Flexibility:

- Amendments involving administrative or non-fundamental matters (e.g., state boundaries) can be made by a simple majority.
- Ensures that less critical changes do not face unnecessary hurdles.

Rigidity:

- Fundamental provisions like Fundamental Rights or federal structure require a special majority and, in some cases, state ratification.
- Protects the basic structure of the Constitution from arbitrary changes.

Dynamic Nature:

- The special majority requirement ensures careful deliberation and consensus.
 - Balances national and regional interests by involving states for federal matters.
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Significance of the Procedure

1. **Democratic Safeguard:** Ensures broader participation and consensus for significant changes.
2. **Protection of Basic Structure:** The Supreme Court's **Basic Structure Doctrine** (Kesavananda Bharati case, 1973) prevents Parliament from altering the Constitution's fundamental principles, adding a judicial layer of rigidity.
3. **Adaptability:** Facilitates changes in response to evolving socio-economic and political contexts.